

25STCV31013 25STCV31013

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Case Number: 25STCV31013 Hearing Date: July 31, 2026 Dept: 510

No.

15 - Babak Aaron Paz, et al. v. Tesla, Inc.

Plaintiffs

Babak Aaron Paz and Anahita Tajbakhsh's Motion for Attorney Fees

Plaintiffs Babak Aaron Paz and Anahita

Tajbakhsh move for a total of \$25,027.73 in attorney fees and costs under Civil

Code § 1794(d). The prevailing

plaintiff may recover "the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).)

Plaintiffs

seek \$21,707.50 for 38.9 hours incurred on the case at a \$375-\$575 hourly rate.

Plaintiffs also seek an additional \$1,149.48 in costs. Plaintiffs use a 1.1

multiplier on the attorney fees, for an additional \$2,170.75.

Hourly

Rates

Plaintiff requests 38.9

hours of fees from 2 licensed

attorneys, Tamara Artolozaga and Isaac Kohen. Plaintiffs present evidence of

both attorneys' qualifications and experience. (See Kohen Decl., ¶¶ 15-19.)

They bill \$375 and \$575 per hour respectively.

Based on its knowledge of the legal market, its review of the credentials and experience of Plaintiff's attorneys, and the particular tasks performed by counsel, the Court finds Plaintiffs claim excessive hourly rates for counsel. This was a straightforward case that did not require superior expertise. Thus, the Court will reduce Artolozaga's rate to \$300 per hour and Kohan's rate to \$375 per hour.

Hours

In calculating the lodestar, the court must determine whether the tasks performed by an attorney were necessary and whether the amount of time billed for each task was reasonable. (*Baxter v. Bock* (2016) 247 Cal.App.4th 775, 793.) The moving party has the burden of proof on these issues. (*Ibid.*)

A reduced award is justified when a case is "overlitigated" and the bills are "padded." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) For a "voluminous fee application," courts may "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure." (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41 (*Warren*); accord *Morris*, *supra*, 41 Cal.App.5th at p. 40 ["The court could properly have made an across-the-board reduction of 30 percent"].)

Plaintiffs'

counsel billed an excessive number of hours for some tasks. For example, Plaintiffs' counsel billed many hours for drafting papers substantially similar to those filed in other cases. The Court knows this from its own experience. For example, Plaintiff's counsel is billing 6.5 hours to draft this fee motion plus another 4.5 hours to review the opposition, draft the reply, and attend the hearing. (*Kohen Decl.*, Ex. 1 at p. 3.) However, this fee motion differs very little from another fee motion Plaintiffs' counsel filed in another case in this Department—*Monoshevich v. Ford Motor Company* (Case no. 24STCV11936). In addition, Plaintiffs' counsel improperly bills for administrative or clerical tasks that could have been done by a secretary. For example, Kohen billed a total of 3.2 hours (or \$1,840) on vehicle surrender logistics. (*Id.*, at pp. 2-3.) Billing that much time at a \$575 rate for such tasks is not reasonable.

After reviewing all billing records, the Court exercises its discretion to reduce Plaintiffs' counsel's hours claimed by 30%.

Multiplier

Plaintiffs move for a 1.1 multiplier. Multipliers may be awarded based on factors including “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) After considering all relevant factors, the Court finds a lodestar enhancement is not warranted. This case did not involve novel or difficult questions. Plaintiffs’ counsel did not demonstrate exceptional skill in litigating the case. Counsel’s hourly rates adequately account for representation on contingency. (See Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.)

Other

Costs

Plaintiffs

seek \$1,149.48 for costs. “[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase ‘costs and expenses’ to cover items not included in ‘the detailed statutory definition of “costs” ’ set forth in Code of Civil Procedure section 1033.5.” (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 42.) Defendant challenges several specific items as not reasonably incurred. “In awarding costs, a trial court’s first determination ... is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855, internal quotes and citations omitted.)

The

Court finds that all costs except two were reasonably incurred. Defendant challenged a \$100 fee for an unnamed expert and \$75 for database research that is available as a subscription, not for individual searches. and will award the requested amount of costs in full. Plaintiff did not address or provide evidentiary support for either cost. The Court will tax \$175 from Plaintiff’s request, bring the cost award to \$974.48.

Therefore,

the Court will award a total of \$11,012.48 attorney fees and costs on this motion. This includes (1) 35.6 hours x .7 at an adjusted rate of \$375 per hour (\$9,345) and (2) 3.3 hours x .7 at an adjusted rate of \$300 per hour (\$693). This totals \$10,038. The Court will also award \$974.48 in costs, for a total of \$11,012.48.

Disposition

Plaintiffs Babak Aaron Paz and Anahita

Tajbakhsh's motion for attorney fees is granted in part in the total amount of \$11,012.48 in fees and costs.